

Smt. Rinki Idnani vs Nitin Idnani on 5 September, 2024

NEUTRAL CITATION NO. 2024:MPHC-IND:25828

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IN THE HIGH COURT OF MADHYA PRADESH
AT INDORE
BEFORE
HON'BLE SHRI JUSTICE GAJENDRA SINGH
MISC. PETITION No. 2567 of 2023
SMT. RINKI IDNANI
Versus
NITIN IDNANI

Appearance:

Shri Chetan Jain - learned counsel for the petitioner.

Shri Nisheet Wishard, learned counsel for the respondent [

HEARD ON : 29.0
PRONOUNCED ON : 05.0

ORDER

01. This Misc. Petition under Article 227 of the Constitution of India is preferred challenging the legality of order dated 04.03.2023 passed in RCS-HMA 367/2022 by the Additional Principal Judge, Family Court, Indore with the following relief:-

(a) The order dated 04.03.2023 (Annexure-P/7) passed by the Additional Principal Judge, Family Court Indore in RSC-HMA 367/2022 by which the Family Court has partly allowed the application U/s 24 of the Hindu Marriage Act, 1955 may kindly be modified and the maintenance as prayed in the application (Annexure-A/2) may kindly be ordered to be passed.

(b) To award costs of the petition from the respondent.

(c) Any other relief which this Hon'ble Court may deem fit in the NEUTRAL CITATION NO. 2024:MPHC-IND:25828

2 MP-2567-2023 facts and circumstances of the case against the respondents and in favour of the petitioner be granted.

02. Necessary facts are that the petitioner/wife and respondent/husband were married on 26.06.2010 as per Hindu rites and customs in the city of Indore. The child "X" was begotten to the couple on 05.02.2013. The husband/respondent filed the petition for decree of divorce (Annexure-P/1) before the Principal Judge, Family Court, Indore under Section 13(i a)) of the Hindu

Marriage Act, 1955 alleging continuous acts of cruelty.

03. The petitioner/wife filed an application (Annexure-P/2) under Section 24 of the Hindu Marriage Act, 1955 seeking an interim maintenance of Rs.80,000/- for herself and her minor son regarding maintenance, medical expenses, daily expenses and educational expenses of minor son alongwith an amount of Rs.30,000/- for defending the case asserting that the respondent/husband is posted as Assistant Vice President in the HDFC Bank, Navrangpura Branch, Ahmedabad. The respondent/husband replied the application submitting that the petitioner/wife is highly educated with the post graduation degree of M.Com and M.Ed. She is in good health. She engaged in the profession of Astrology and charged Rs.2100/- for single consultation. She is also engaged in the businesses in the name of Rinky Sales Corporation and is running 2 units, one at Pithampur and another at Cloth Market, Indore. Both the units were opened with the help of her father and father of the petitioner/wife paid Rs.1,00,000/- to the petitioner/wife per month but she is exigent, she earns Rs.5,00,000/- per month herself and NEUTRAL CITATION NO. 2024:MPHC-IND:25828 3 MP-2567-2023 received Rs.1,00,000/- from her father and also received funds from her friends. He further submitted that his basic salary is only Rs.26,250/- & net salary is Rs.74,500/-. He has to make deductions regarding house rent, conveyance charges, and other allowances. In the last paragraph of the reply he mentioned 12 heads of expenses in which he spent an amount of Rs.67,733/-. He pay the education expenses of his son. The trial Court partly allowed the petitioner/wife's application and ordered to pay a sum of Rs.10,000/- per month as interim maintenance and an amount of Rs.25,000/- as expenses of the petitioner to be payable in three equal installments and also Rs.200/- per hearing for transport expenses.

04. Challenging the order, this petition has been preferred on the ground that the income of the respondent/husband has not been taken into consideration. She had filed the counter affidavit on 13.01.2023 to the reply clarifying the fact that she earns no money and is totally dependent on him. The Annexure-P/4 and P/5 has not been taken into consideration. The the Principal Judge, Family Court has failed to consider the fact that the respondent/husband has left the petitioner/wife since April, 2019 and since then the respondent had neither made any talks with the petitioner nor made any efforts to bring her back. On the other hand, he never bothered for the survival of his wife and minor son. The Additional Principal Judge has failed to consider the fact that the object of maintenance is to prevent vagrancy and destitution. It provides a speedy remedy for the supply of food, clothing and shelter to the deserted wife.

05. Learned counsel for the respondent/husband has opposed the NEUTRAL CITATION NO. 2024:MPHC-IND:25828 4 MP-2567-2023 prayer and prayed for dismissal of this petition. He filed a copy of social media post (Annexure-R/1) regarding consultation in Numerology work. A copy of mutual understanding agreement dated 05.02.2019 (Annexure-R/3).

Heard the learned counsel for the parties and perused the record.

06. Firstly, we are referring to the bare provision of Section 24 of the Hindu Marriage Act, 1955. The said provision is being reproduced below:-

24. Maintenance pendente lite and expenses of proceedings.-

Where in any proceeding under this Act it appears to the court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of the wife or the husband, order the respondent to pay to the petitioner the expenses of the proceeding, and monthly during the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the court to be reasonable : Provided that the application for the payment of the expenses of the proceeding and such monthly sum during the proceeding, shall, as far as possible, be disposed of within sixty days from the date of service of notice on the wife or the husband, as the case may be.

07. First thing is that the above provision of Section 24 of the Hindu Marriage Act relates to the wife or the husband as the case may be. It does not deal with the children. Accordingly, the basis of enhancement on the referring to the needs of minor son is not within the purview of Section 24 of the Hindu Marriage Act, 1955.

08. Now, this Court is examining the amount fixed for support and the necessary expenses on the proceedings in the light of documents filed before the trial Court and the copy of which have been produced.

09. Nine documents are listed which contains the details of bank statement of the respondent/husband. The documents are to the effect that the NEUTRAL CITATION NO. 2024:MPHC-IND:25828 5 MP-2567-2023 bank balance on 07.09.2020 of respondent/husband is Rupees Ten Crores. Affidavit (Annexure-P/6) of the petitioner/wife mentions that she has acquired a working knowledge of Numerology and she earns Rs.10,000/- per month from that profession. Her total income in the assessment year 2021- 2022 is Rs.2,76,200/-. Taking into consideration the case of Bhushan Kumar Meen vs. Mansi Meen @ Harpreet Kaur (passed in Criminal Appeal No.879 of 2009), Smt. Mamta Jaiswal vs. Rajesh Jaiswal ; II (2000) DMC 170, the documents brought on record regarding the income of both the parties and further fact that the husband/respondent is bearing the expenses of his son's education and he is making significant investments for his son in mutual funds, therefore, an amount of Rs.10,000/- as interim maintenance is further enhanced.

10. In view of the above, the present Misc Petition under Article 227 of the Constitution of India is partly allowed.

C.C. as per rules.

(GAJENDRA SINGH) JUDGE VS